

HAC VICE FOR PLAINTIFF
FILED BY: TUBBS, JEFFREY
TENTATIVE RULING:

The pro hac vice application of Joel Walker is **approved**.

3. 9:00 AM CASE NUMBER: C22-02776
CASE NAME: JOHN RC ROE VS. DOES 4-100
HEARING IN RE: APPLICATION PERMITTING JOEL M. WALKER, ESQ. TO APPEAR AS COUNSEL PRO
HAC VICE FOR PLAINTIFF
FILED BY: ROE, JOHN RC
TENTATIVE RULING:

The pro hac vice application of Joel Walker is **approved**.

4. 9:00 AM CASE NUMBER: C23-02106
CASE NAME: SANTIAGO MORALES VS. DWELLEY FAMILY FARMS, LLC
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:

Plaintiff Santiago Morales moves for final approval of his class action and PAGA settlement with defendant Dwelley Family Farms, LLC. He also moves for approval of his attorney's fees, litigation costs, administration costs, and representative payment.

Since preliminary approval was granted, the administrator has mailed notices to 420 class members. No objections have been received, and only one class member opted out.

The motion is **granted**.

The original complaint was filed by Plaintiff on August 23, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. A First Amended Complaint adding PAGA claims (based on a notice to the LWDA given on August 23, 2023), was filed on October 26, 2023. A Second amended Complaint was filed on March 21, 2024, and remains the operative complaint.

The settlement will create a gross settlement fund of \$321,860. The class representative payment to plaintiff will be \$7,500. Attorney's fees will be \$107,286.67 (one-third of the settlement). Litigation costs will be \$20,000. (Counsel actually incurred slightly more than that but have limited their claim to what was stated in the settlement and the preliminary approval.) The settlement administrator's costs will be \$7,250, somewhat less than estimated, resulting in a very slight increase in the average recovery. PAGA penalties are \$15,000, resulting in a payment of \$11,250 to the LWDA and \$3,750 to the aggrieved employees. The net amount paid directly to the class members will be about \$164,823. The fund is non-reversionary. Based on the estimated class size of 388, the average net payment for each class member is approximately \$419.

The proposed settlement will certify a class of all current and former non-exempt employees